

The complaint

Mr and Mrs H complain that Lloyds Bank General Insurance Limited declined a claim for storm damage on their home insurance policy.

What happened

Mr and Mrs H submitted a claim on their home insurance after water leaked through the roof of their property during stormy weather. Because they couldn't get a quick response from their home emergency cover they got a local builder to carry out the repairs.

But Mr and Mrs H said Lloyds had declined their claim for storm damage. When Lloyds asked for evidence of the damage Mr and Mrs H they said they hadn't been able to take photos due to their underlying health conditions. And a member of the family was self-isolating at the time. But the builder who repaired the roof had confirmed the damage had been caused by the storm. And they want Lloyds to accept the claim.

Lloyds said it'd spoken at length with Mr and Mrs H's builder and it'd raised concerns about the condition of the roof before the incident. It may have allowed the storm to cause further damage and subsequent water ingress. Lloyds said it'd fully assessed Mr and Mrs H's claim. But they'd been unable to provide any evidence to show the condition of the roof before the storm or the damage caused by the storm.

Lloyds said Mr and Mrs H only had photos showing the work nearing completion. It couldn't consider that evidence of actual damage. So Mr and Mrs H had failed to meet the requirements to prove damage had resulted from a storm incident. And it couldn't consider their claim.

Mr and Mrs H weren't satisfied with Lloyds' response. So they contacted our service and our investigator looked into the matter. He explained our service's approach to claims involving storm damage. Although he agreed a storm had taken place at the time of the damage, Lloyds hadn't been able to confirm the damage to the roof was consistent with storm damage – or that storm conditions were the main cause of the damage.

Our investigator didn't feel the builder's statement was enough by itself to prove that storm conditions were the cause of the damage. And Mr and Mrs H hadn't been able to provide any further information to validate the claim. So he didn't think Lloyds had declined the claim incorrectly. And he wouldn't be asking Lloyds to do anything more.

Mr and Mrs H didn't agree. It hadn't been practical to get a picture of the roof when it'd been damaged. And they had nowhere to store any damaged items to show Lloyds. So they've asked for an ombudsman's final decision.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

It must've been very upsetting when water started to leak through the roof of Mr and Mrs H's property. Unfortunately they weren't able to get a quick response from their separate home emergency policy due to the volume of work following the storm. So they contacted an independent builder to carry out the roof repairs.

When Mr and Mrs H contacted Lloyds the work had already been completed and the builder had disposed of the damaged items. And it wasn't possible to arrange a site visit as Mrs H was self-isolating. So they provided photos of the roof to Lloyds to support their claim. But Lloyds said that wasn't enough. So I've looked at whether Lloyds acted fairly and reasonably in declining their claim for storm damage.

It's important to realise an insurance policy is a contract between the insurer and the policyholder. The insurer agrees to pay for any losses covered by the perils listed in the policy documentation. But the policy also states the obligations the insurer expects the policyholder to abide by.

I've looked at the policy documentation for Mr and Mrs H's home insurance policy. It asks the policyholder to *'make sure your home is kept in a good state of repair or you could find that the damage is caused as a result of wear and tear, and not something your insurance covers you for'* and *'if you need to make a claim, call us. We may ask you for information to support your claim such as proof of ownership.'*

Page 9 of the policy booklet explains how to make a claim. Lloyds says it's okay for the policyholder to go ahead with any urgent repairs to prevent further damage – like fixing a forced lock or broken window - but it asks the policyholder to give it a call before they repair anything else.

And Lloyds asks the policyholder to keep any damaged goods as it may need to see them. This is repeated on page 43 under 'proof of loss' where the policy says *"do not throw away any damaged items before we have had a chance to see them, or carry out any non-emergency repairs before we have had a chance to inspect them. You must be able to prove and substantiate your loss."*

This is important as the insurer will need to see some evidence of the damage that's been suffered before considering the claim. Without any evidence Lloyds wouldn't be able to decide if the damage was covered by one of the insured perils listed in the policy.

I appreciate that Mr H says it was difficult to take photos of the reported damage due to his underlying health conditions and the adverse weather outside. And he's provided an email from his builder who carried out the repairs saying the roof had been in good condition when he came to do the repairs and the damage had been caused by the winds.

But I do think the builder could've photographed the damage before the work started rather than just taking photographs to show the completed work. It's not unusual for an insurer to ask for photographic evidence of the damage being repaired.

Lloyds say the photos it's received didn't confirm the roof was damaged by a storm. The photos only showed that the roof had already been repaired. When Lloyds spoke to the builder it was told conflicting reasons why the damage might've occurred. And any damaged sections had already been disposed of so they couldn't be inspected.

As our investigator has explained, our service looks at three questions when considering claims for storm damage. And if any of the questions can't be answered with a 'yes' then I'm afraid we can't say the insurer has acted unfairly.

There's no dispute a storm took place at the time the damage occurred. And that answers the first question. The second and third questions ask if the damage suffered was the sort we'd expect a storm to cause, and if so, whether the storm was the main cause of the damage.

Unfortunately the repairs were carried out before Lloyds could validate the claim in line with the terms of the policy. And without any photos of the damaged roof or physical evidence showing the damage, it's not possible to answer the second and third question. I'd expect a well-maintained roof to be able to withstand all but the most severe weather. And I don't think the builder's statement by itself proves the roof damage was caused by the storm.

Mr and Mrs H have my sympathy. But I don't think they've been able to provide enough evidence to support their claim for storm damage. Based on everything I've seen I think Lloyds has acted fairly and within the terms of the home insurance policy in declining their claim. And I won't be asking it to do anything more.

My final decision

My final decision is that I do not uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr H and Mrs H to accept or reject my decision before 11 June 2021.

Andrew Mason
Ombudsman